

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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KENDELL LEBEN and NICHOLAS LEBEN,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
JOEL E. VIDAL, Shield No. 15650, and NYPD POLICE
OFFICERS JOHN DOES NUMBER 1-10,Plaintiffs designate Kings
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 25, 2021

Yours, etc.

Caitlein Robin

CAITLIN ROBIN, ESQ.

CAITLIN ROBIN AND ASSOCIATES PLLC

Attorney for Plaintiffs

30 Broad Street Suite 702

New York, New York 10004

(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER JOEL E. VIDAL, SHIELD NO. 15650, 79th Precinct; 263
Tompkins Avenue, Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KENDELL LEBEN and NICHOLAS LEBEN,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
JOEL E. VIDAL, Shield No. 15650, and NYPD POLICE
OFFICERS JOHN DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs KENDELL LEBEN and NICHOLAS LEBEN, by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 9th, 2020, at approximately 5:00 p.m., plaintiffs KENDELL LEBEN and NICHOLAS LEBEN, while lawfully in the vicinity of Hancock Street and Spencer Place in Brooklyn, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiffs were subjected to excessive force, causing them to suffer physical pain and injury, as well as mental and emotional injury. Plaintiffs were then unlawfully imprisoned at the 79th Precinct Police Station and Kings County Central Bookings for approximately 24 hours before they were released on their own recognizance. Plaintiffs were denied the right to due process and a fair trial for false charges, which were dismissed and sealed on or around October 22, 2020. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff KENDELL LEBEN is a resident of the state of New York.
3. Plaintiff NICHOLAS LEBEN is a resident of the state of New York.
4. NYPD POLICE OFFICER JOEL E. VIDAL, Shield No. 15650, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD POLICE OFFICER JOEL E. VIDAL, Shield No. 15650, was at all times relevant herein, assigned to the 79th Precinct.
6. NYPD POLICE OFFICER JOEL E. VIDAL, Shield No. 15650, is being sued in his individual and official capacities.
7. NYPD POLICE OFFICERS JOHN DOES NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. NYPD POLICE OFFICERS JOHN DOES NUMBERS 1-10 were at all times relevant herein, assigned to the 79th Precinct.
9. NYPD POLICE OFFICERS JOHN DOES NUMBERS 1-10 are being sued in their individual and official capacities.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

13. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on February 2, 2021.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 9th, 2020, at approximately 5:00 P.M., Plaintiffs were lawfully present in the vicinity of Hancock Street and Spencer Place in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiffs without probable cause or legal justification.

18. Plaintiffs had attended a funeral service for a friend earlier that day, and were holding a candlelight vigil with a small group just outside the park located at Hancock Street and Spencer place.

19. Upon reaching the park entrance the plaintiffs observed an NYPD vehicle already parked on the adjacent sidewalk, from which two uniformed officers emerged and encouraged the crowd to keep a safe social distance.

20. As plaintiffs, masked and distancing, went about greeting and mingling with the other people at the vigil, they observed approximately 7 other police vehicles arrive on the scene.

21. At this time, defendant police officers began to arrest one of the vigil attendees, and plaintiff Kendell Leben started to record the incident on his phone.

22. A defendant NYPD officer approached plaintiff Kendell Leben and physically pushed him onto the sidewalk.

23. Plaintiff did not resist the Officers, and stood on the sidewalk, continuing to record on his cell phone.

24. The Defendant Officers then pushed Plaintiff a second time, causing him to fall to the floor.

25. Multiple Defendant Officers then got on top of Plaintiff Kendell Leben, forcibly restraining him with metal handcuffs, and subjecting him to an unlawful pat-down search.

26. It was at this point that the defendant NYPD officers began to unlawfully arrest plaintiff, Kendell Leben, throwing him up against an NYPD vehicle, while in handcuffs, bending and twisting his arms, and placing him under arrest.

27. Plaintiff Nicholas Leben was also arrested by defendant officers at this time, restrained with metal handcuffs and subjected to an unlawful pat-down search.

28. Plaintiff Nicholas Leben was also aggressively thrown into a car, while handcuffed, before being placed into an NYPD vehicle.

29. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

30. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

31. Plaintiffs did not resist arrest.

32. Both Plaintiffs pleaded with officers to loosen the metal cuffs as they were painfully tight, but were ignored by defendant officers.

33. The Defendant Officers then placed the Plaintiffs in the back of NYPD vehicles and transported them against their will to the 79th Precinct, where they were unlawfully fingerprinted, photographed, and placed in a holding cell.

34. After being unlawfully detained at the 79th precinct, Plaintiffs were again searched and their belongings were taken and held, including their phones, cash, and jewelry.

35. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiffs or from any location that was in Plaintiffs' possession, custody, or control.

36. After approximately 3 hours, defendant officers finally removed the excessively tight handcuffs from the plaintiffs' wrists, but injury had already occurred.

37. At approximately 1:00a.m., both Plaintiffs were transported to Kings County Central Bookings where they were again unlawfully searched, fingerprinted, photographed, and detained in a holding cell.

38. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

39. Specifically, the defendant police officers falsely stated to the District Attorney's Office that the plaintiffs were guilty of Obstructing Governmental Administration.

40. On October 11, 2020, after approximately 30 hours in custody, the Plaintiffs were released from custody on their own recognizance.

41. Some of the property seized from the plaintiffs by defendant officers at the time of their unlawful arrest, including some cash and jewelry, were never returned upon their release.

42. The charges which were falsely made against the plaintiffs by the defendant officers on October 9, 2020 were dismissed on or around October 22, 2020, as they committed no crime.

43. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

44. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

45. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

47. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

48. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

50. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

54. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

56. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

57. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

60. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search Plaintiffs.

63. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

67. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

69. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

71. In withholding/creating false evidence against Plaintiffs, KENDELL LEBEN and NICHOLAS LEBEN, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

72. As a result of the foregoing, Plaintiffs KENDELL LEBEN and NICHOLAS LEBEN sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights

76. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The use of excessive force by defendants by, amongst other things, tightly handcuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United

States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

79. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, KENDELL LEBEN and NICHOLAS LEBEN.

81. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

82. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

86. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

88. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

89. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

91. Defendants failed to intervene to prevent the unlawful conduct described herein.

92. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to unlawful search, excessively tight cuffs, and other physical constraints.

93. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Assault

104. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at length herein.

105. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

106. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Battery

110. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tackled Plaintiffs and excessively handcuffed them, with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery.

112. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

116. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs KENDELL LEBEN and NICHOLAS LEBEN demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 25, 2021

By: Caitlin Robin
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiffs
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER JOEL E. VIDAL, SHIELD NO. 15650, 79th Precinct; 263
Tompkins Avenue, Brooklyn, NY 11216

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
February 25, 2021


CAITLIN ROBIN